

Consultation Reply Eho 2

From: <redacted_name> <redacted_email> Sent: <redacted_date> 14:06:08 UTC+01:00 To: <redacted_name> <redacted_email> Subject: FW: 93.51862.FUL: 17 Foundry Court, Doncaster, ZZ25 1WD
Hi <redacted_name>, thank you for the attached information from the applicant, and apologies for the delayed reply.

I have reviewed the information provided, which now appears to consider the need for enhanced noise mitigation measures. The information is fairly generic rather than site specific, and does not consider requirements specifically for control of the lower frequencies of amplified entertainment noise or the exceptionally loud ambient night time noise level, glazing/ventilation treatments (which will require mechanical ventilation instead of relying on opening windows/trickle vents), ceiling noise mitigation nor the actual maximum internal noise levels (including specific frequency based levels) that must not be exceeded, as specified by ourselves. In addition, whilst reference is made to Building Regulations sound attenuation requirements between the proposed flat and commercial unit below, these standards are designed for resistance to the passage of sound in residential dwellings and will not be sufficient for protection from noise due to the actual ground floor use, nor is control of flanking sound transmission from this use referred to.

In summary, on its own, the submitted information does not give confidence that sufficient consideration has been made of the practicalities of the site and whether design measures will be able to mitigate against the specific noise climate sufficiently. This could otherwise potentially lead to the situation of approval with a planning condition specifying maximum internal noise levels to be met, which the applicant could not achieve.

However, a further review of available literature regarding acoustic assessments for Silver Street has revealed that an assessment was carried out by an acoustic consultant for the premises in <redacted_date>. This is not necessarily strictly applicable to the current application as licensed premises have changed and additional ones opened since then, and the required internal noise levels for low frequency noise are slightly different now, but it does give a good indication of whether or not the <redacted_name> could meet the required acoustic standards. The report indicates that a suite of extensive mitigation measures can be implemented such that the required internal noise levels can be achieved despite the external ambient noise levels and internal commercial ground floor use.

Therefore, should you be minded to approve the application, I would now be able to accept a condition (as per the original suggested requirements) for the <redacted_name> to achieve the standards, along with post-completion confirmatory testing. If possible, given the limited understanding of the issue demonstrated so far by the applicant, I would suggest a "prior to commencement" type condition rather than "prior to first occupation".

Please let me know if this is something you would consider, and if so, I will draft a form of words for you.

In addition, please bear in mind my other comments regarding lack of waste storage/management and the attic lighting and ventilation observations.

Regards,

<redacted_name>

From: <redacted_name> <redacted_email> Sent: <redacted_date> 16:27 To: <redacted_name> <redacted_email> Subject: RE: 93.51862.FUL: 17 Foundry Court, Doncaster, ZZ25 1WD

Hi <redacted_name>,

Thank you for your comments on this application.

In terms of noise, I have asked a number of times for the applicant to provide a Noise Impact Statement however they haven't provided one.

Would you be satisfied with the attached document?

Kind regards, <redacted_name> <redacted_name> Senior Planning Officer <redacted_name> City of Doncaster Council

Tel: <redacted_phone> Email: <redacted_email> Address: Civic Office, Waterdale, Doncaster, DN1 3BU

The Council have implemented a new practice for how we negotiate and accept amendments to all planning applications, which may affect you. We have also published a new series of Local Validation Requirements and would encourage you to familiarise yourself with these requirements, which will come into effect for all applications submitted on or after <redacted_date>. More information about this can be found here: How do I apply for planning permission? - City of Doncaster Council Pre-application advice - City of Doncaster Council
From: <redacted_name> <redacted_email> Sent: <redacted_date> 16:07 To: <redacted_name> <redacted_email> Cc: <redacted_name> <redacted_email> Subject: 93.51862.FUL: 17 Foundry Court, Doncaster, ZZ25 1WD

Hi,

I have assessed the proposal to convert a first-floor and attic level above a takeaway/restaurant into a self-contained flat. The location is in the City Centre and within an area where there are many licensed premises, comprising night clubs, pubs and food establishments. The area is therefore subject to considerable amenity degradation, predominantly due to noise and cooking odours. Noise impact will include structural transmission from the ground floor restaurant/takeaway below the site, patron noise and external noise from activities in the nearby licensed premises, at noise sensitive times, which is known to be extremely loud and with dominant levels at lower frequencies that are difficult to attenuate.

The flat has no provision for waste storage, and no access into the rear courtyard where waste would be stored before collection, as the ground floor takeaway/restaurant has. Whilst the elevation shows two doors to the rear, the plan shows no access for the flat to the rear. Without direct access to the rear for the flat to access their waste bin, the proposal is unacceptable on the grounds of inadequate provision for waste storage/disposal.

The attic bedroom of the flat has no natural light apart from an existing skylight. This is unlikely to provide suitable or sufficient glazing and is unlikely to be openable or adjustable to provide suitable ventilation, especially purge ventilation for overheating and without further details, is not considered acceptable.

The size of the glazing area to the living room is likely to prevent adequate internal noise levels being achieved. The application does not consider the extremely high ambient noise levels nor any mitigation necessary that will ensure acceptable living conditions.

At this stage, I recommend that the application be refused until such times as it can be demonstrated that: 1. There is adequate provision for waste storage and disposal. 2. There is adequate provision for natural light, view and ventilation to the attic bedroom. 3. Internal noise levels as below can be achieved (measured at times when typical external noise from the nearby licensed premises and the ground floor takeaway/restaurant is occurring): No more than 35 dB LAeq (0700-<redacted_date>) in the living & dining rooms during the daytime No more than 30 dB LAeq (<redacted_date>-0700) in the bedroom during the night-time 45 dB LAFmax not regularly exceeded in the bedroom during the night-time No more than 47 dB Leq in the 63 Hz frequency band (music noise) in the bedroom during the night-time (<redacted_date>-0700) No more than 41 dB Leq in the 125 Hz frequency band (music noise) in the bedroom during the night-time (<redacted_date>-0700). These requirements must be met with windows closed and alternative means of ventilation provided.

I will be happy to reconsider the proposal upon receipt of the above information.

Regards,

<redacted_name> <redacted_name>, BSc (Hons), MCIEH, CEnvH Senior Environmental Health Practitioner
Regulation & Enforcement Directorate of Place City of Doncaster Council